ELECTRONICALLY FILED
07/31/2026
U.S. DISTRICT COURT
Northern District of WV

IN THE UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

DR. DONNA HESTON,
Plaintiff,

DR. DONNA HESTON,
Plaintiff,

v.

v.

THE MARION COUNTY BOARD OF EDUCATION,
DONNA COSTELLO, in her individual and official capacity as a member of the Marion County Board of Education;
KEVIN ROGERS, in his individual and official capacity as a member of the Marion County Board of Education; and
JAMES SAUNDERS, in his individual and official capacity as a member of the Marion County Board of Education,

Defendants.

THE MARION COUNTY BOARD OF EDUCATION,
DONNA COSTELLO, in her individual and official capacity as a member of the Marion County Board of Education;
KEVIN ROGERS, in his individual and official capacity as a member of the Marion County Board of Education; and
JAMES SAUNDERS, in his individual and official capacity as a member of the Marion County Board of Education,

Defendants.

Civil Action No.: 1:26-CV-92
Judge: Kleeh

Civil Action No. 1:26-cv-00092

Judge: Kleeh

COMPLAINT

COMES NOW the Plaintiff, Dr. Donna Heston, by counsel, Ryan J. Umina, Esq., and the law firm of Umina Legal, PLLC, and for her Complaint against the above-named Defendants, states as follows:

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COMES NOW the Plaintiff, Dr. Donna Heston, by counsel, Ryan J. Umina, Esq., and the law firm of Umina Legal, PLLC, and for her Complaint against the above-named Defendants, states as follows:

INTRODUCTION

This action arises from a sustained, sex-based campaign waged against Dr. Donna Heston, the Superintendent of Marion County Schools, by three members of the Marion County Board of Education — Defendants Donna Costello, Kevin Rogers, and James Saunders — who seized upon and spread a false accusation that Dr. Heston was in an intimate relationship with another woman, Kristin DeVaul, the County's Administrative Assistant of Human Resources.

INTRODUCTION

This action arises from a sustained, sex-based campaign waged against Dr. Donna Heston, the Superintendent of Marion County Schools, by three members of the Marion County Board of Education — Defendants Donna Costello, Kevin Rogers, and James Saunders — who seized upon and spread a false accusation that Dr. Heston was in an intimate relationship with another woman, Kristin DeVaul, the County's Administrative Assistant of Human Resources.

That accusation was false, but its truth is immaterial. Acting on it, the three Board members interrogated Dr. Heston about her private life, surveilled her social media, demanded that she recuse herself, predetermined and then declined to renew her contract notwithstanding a positive performance evaluation, and — after learning that she had asserted her rights

That accusation was false, but its truth is immaterial. Acting on it, the three Board members interrogated Dr. Heston about her private life, surveilled her social media, demanded that she recuse herself, predetermined and then declined to renew her contract notwithstanding a positive performance evaluation, and — after learning that she had asserted her rights — extended her only the minimum one-year contract term while continuing to subject her to gender-based hostility.

The discrimination is established not principally by Dr. Heston's word, but by the Board members' own recorded statements, the written statement of a sitting Board member, and the Board's own public records. Dr. Heston brings this action under Title VII of the Civil Rights Act of 1964, the Fourteenth Amendment to the United States Constitution as enforced through 42 U.S.C. § 1983, and the West Virginia Human Rights Act, to redress the violation of her rights and to recover the damages she has suffered.

JURISDICTION AND VENUE

1. Jurisdiction is conferred upon this Honorable Court pursuant to 28 U.S.C. §§ 1331, 1343, and 1367, as this action arises under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e et seq., and 42 U.S.C. § 1983, and as this Court has supplemental jurisdiction over the related claims arising under the West Virginia Human Rights Act, W. Va. Code § 5-11-1 et seq.

2. Plaintiff has satisfied all administrative prerequisites to suit under Title VII.

3. Plaintiff timely filed a Charge of Discrimination with the Equal Employment Opportunity Commission, dual-filed with the West Virginia Human Rights Commission, and designated EEOC Charge No. 533-2026-01803, alleging sex discrimination including discrimination based on perceived sexual orientation, hostile work environment, and retaliation.

4. On May 5, 2026, the United States Department of Justice, Civil Rights Division, issued Plaintiff a Notice of Right to Sue. See EEOC Charge of Discrimination and Notice of Right to Sue (Attached hereto as "Ex. 1").

5. This Complaint is filed within ninety (90) days of Plaintiff's receipt of that Notice.

6. Venue is proper before this Honorable Court pursuant to 28 U.S.C. § 1391(b) and 42 U.S.C. § 2000e-5(f)(3), as the Defendant Board resides in this District, the relevant employment records are maintained in this District, and the unlawful employment practices complained of were committed in Marion County, which lies within the Clarksburg Division of the Northern District of West Virginia.

4. On May 5, 2026, the United States Department of Justice, Civil Rights Division, issued Plaintiff a Notice of Right to Sue. *See* EEOC Charge of Discrimination and Notice of Right to Sue (Attached hereto as "Ex. 1").

5. This Complaint is filed within ninety (90) days of Plaintiff's receipt of that Notice.

6. Venue is proper before this Honorable Court pursuant to 28 U.S.C. § 1391(b) and 42 U.S.C. § 2000e-5(f)(3), as the Defendant Board resides in this District, the relevant employment records are maintained in this District, and the unlawful employment practices complained of were committed in Marion County, which lies within the Clarksburg Division of the Northern District of West Virginia.

PARTIES

7. Plaintiff, Dr. Donna Heston, Ed.D., is a citizen of the State of West Virginia who has served as the Superintendent of Marion County Schools since July 1, 2021 ("Superintendent" or "Dr. Heston").

8. Dr. Heston presently serves under a one-year contract for the 2026–27 school year, with a base salary of $149,135, a $5,000 supplement for her doctorate, and total compensation of approximately $164,440 inclusive of benefits.

9. Defendant Marion County Board of Education is a public body corporate and a political subdivision of the State of West Virginia, organized and existing under the laws of the State of West Virginia, with its principal offices at 1516 Mary Lou Retton Drive, Fairmont, West Virginia 26554 (the "Board").

10. The Board is an "employer" within the meaning of Title VII and the West Virginia Human Rights Act.

11. The Board is a "person" subject to suit under 42 U.S.C. § 1983.

12. At all times relevant herein, the Board acted under color of state law.

13. The Board holds final policymaking authority over the employment, contract term, and continuation of the county superintendent pursuant to W. Va. Code § 18-4-1 et seq.

14. The votes and directives of the Board's members constituted official acts of the Board's final policymaking authority over the personnel matters at issue.

15. Defendant Donna Costello is and was at all times relevant herein an elected member of the Board, sued in her individual and official capacities ("Defendant Costello").

16. Defendant Costello has served in leadership roles on the Board, including as its President.

17. At all times relevant herein, Defendant Costello acted under color of state law.

18. Defendant Kevin Rogers is and was at all times relevant herein an elected member of the Board, sued in his individual and official capacities ("Defendant Rogers").

19. At all times relevant herein, Defendant Rogers acted under color of state law.

38. Ms. DeVaul immediately retained counsel, who, on February 9, 2023, issued a written response copied to the Board members characterizing the Harned Allegations as vexatious and salacious and warning of legal exposure for defamation.

39. Although the Board members received both the fabricated email and the attorney's rebuttal, the Board never investigated, repudiated, or discredited the Harned Allegations, and no Board member defended Ms. DeVaul.

40. Instead, the false sexual narrative supplied ammunition for the discriminatory campaign that followed.

INTERROGATIONS OF THE SUPERINTENDENT

[The filing's paragraphs 25 through 40 are not transcribed.]

41. In or about March 2023, in a recorded conversation, Defendant Costello confronted Ms. DeVaul with what she called "nasty rumors" about Dr. Heston and Ms. DeVaul and demanded to know, in substance, what would happen "when Dr. Donna and Kristin break up," treating a professional working relationship as a romantic one.

42. In the same conversation, Defendant Costello acknowledged that "the good old boy network still exists" in Marion County school governance.

43. In the same conversation, Defendant Costello treated a male administrator's habit of taking lengthy personal telephone calls in the school parking lot as unremarkable, even as she scrutinized two women for associating.

44. On or about January 29, 2024, Defendant Costello convened a private meeting with Dr. Heston and, after several minutes of routine county business, told her "this, it's not a debate."

29. There followed an interrogation, lasting approximately thirty-four minutes, of the Superintendent by Defendant Costello concerning a perceived sexual relationship with a subordinate, Ms. DeVaul.

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46. During that meeting, Defendant Costello tied Ms. DeVaul's professional advancement to the fabricated relationship.

[The filing's paragraph 48 is not transcribed.]

47. The premise of the interrogation — that a woman's professional advancement is explained by a sexual relationship rather than by her qualifications — is itself a stereotype about women.

48. Dr. Heston corrected the premise on the recording, stating that she was not on the committee that hired Ms. DeVaul, did not recommend her, and had nothing to do with that committee's selection of Ms. DeVaul for the supervisor's position.

49. Defendant Costello did not acknowledge the correction and continued to press the subject of the fabricated relationship.

50. When Dr. Heston protested that the rumors were defaming her, Defendant Costello instructed her to "set the affair aside."

51. Defendant Costello stated, as to the fabricated affair, "personally, I don't care," treating the defamatory false accusation as established fact.

52. Defendant Costello told the Superintendent to "put your big girl panties on."

53. Dr. Heston confronted Defendant Costello with comparators — male administrators who socialized, traveled, and stayed overnight together and were never suspected of an improper relationship, and a female supervisor and subordinate whose relationship was closer than anything between Dr. Heston and Ms. DeVaul and who were never accused.

THE CONCEALED NORTH MARION MEETING: SURVEILLANCE, A SUNSHINE-LAW VIOLATION, AND A BOARD MEMBER'S OWN WORDS

39. In or about July 2025, Defendants Costello and Rogers traveled together to North Marion High School and met privately, for approximately ninety-eight minutes, with Jared Mileto, an assistant principal at the school, in a meeting concealed from the Superintendent and captured on a recording (the "North Marion Meeting").

40. During the North Marion Meeting, Defendants Costello and Rogers each disclosed to a subordinate employee, outside any public meeting, how they intended to vote on the Superintendent's contract renewal.

41. Defendant Costello then stated, "We're not supposed to say stuff" — a real-time admission that the Board members knew they were not supposed to be making such statements.

42. The Board members continued the discussion notwithstanding that acknowledgment.

43. Defendant Costello identified Dr. Heston as holding the same position, making a third member of the five-member Board whose position on the pending personnel decision was communicated through private, back-channel conversation.

44. By those disclosures, a quorum of the five-member Board communicated their positions on a pending personnel decision outside any public meeting, in violation of the West Virginia Open Governmental Proceedings Act, W. Va. Code § 6-9A-1 et seq., rendering the later separate recorded conversations with Defendant Rogers and with Defendant Costello, to reiterate to the Board members that she is not a lesbian.

45. This allegation is pleaded as evidence of predetermination and pretext, and not as an independent cause of action.

46. During the same meeting, Defendant Rogers revealed that he had been monitoring Dr. Heston's and Ms. DeVaul's social-media accounts, citing photographs of the two on vacation together, and demanded that Dr. Heston recuse herself from any matter involving Ms. DeVaul.

47. Other district employees routinely posted photographs together without any Board member treating those posts as evidence of an improper relationship.

48. The social-media surveillance was applied exclusively to the two women.

49. Upon learning of the North Marion Meeting, Dr. Heston felt compelled, in separate recorded conversations with Defendant Rogers and with Defendant Costello, to reiterate to the Board members that she is not a lesbian.

THE RUMOR SPREADS THROUGH THE SCHOOLS, AND THE SUPERINTENDENT IS MADE TO ANSWER FOR IT

68. Over the course of three years, the false rumor of an intimate relationship between the Superintendent and Ms. DeVaul spread through the district's schools and the Marion County community.

69. The rumor reached Dr. Heston's own subordinates, and, in recorded conversations with school staff, Dr. Heston was forced to deny a fabricated account of her own private life to the employees she supervises.

40. During the North Marion Meeting, Defendants Costello and Rogers each disclosed to a subordinate employee, outside any public meeting, how they intended to vote on the Superintendent's contract renewal.
41. Defendant Costello then stated, "We're not supposed to say stuff" — a real-time admission that the Board members knew they were not supposed to be making such statements.
42. The Board members continued the discussion notwithstanding that acknowledgment.
43. Defendant Costello identified Dr. Heston as holding the same position, making a third member of the five-member Board whose position on the pending personnel decision was communicated through private, back-channel conversation.
44. By those disclosures, a quorum of the five-member Board communicated their positions on a pending personnel decision outside any public meeting, in violation of the West Virginia Open Governmental Proceedings Act, W. Va. Code § 6-9A-1 et seq., rendering the later separate recorded conversations with Defendant Rogers and with Defendant Costello, to reiterate to the Board members that she is not a lesbian.
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46. During the same meeting, Defendant Rogers revealed that he had been monitoring Dr. Heston's and Ms. DeVaul's social-media accounts, citing photographs of the two on vacation together, and demanded that Dr. Heston recuse herself from any matter involving Ms. DeVaul.
47. Other district employees routinely posted photographs together without any Board member treating those posts as evidence of an improper relationship.
48. The social-media surveillance was applied exclusively to the two women.
49. Upon learning of the North Marion Meeting, Dr. Heston felt compelled, in separate recorded conversations with Defendant Rogers and with Defendant Costello, to reiterate to the Board members that she is not a lesbian.

50. Mr. Miletic acknowledged during the meeting that Ms. DeVaul was better qualified than he for the position she held, conceding that she "had a better resume."

COUNT I — TITLE VII OF THE CIVIL RIGHTS ACT OF 1964 — SEX DISCRIMINATION, INCLUDING DISCRIMINATION BASED ON PERCEIVED SEXUAL ORIENTATION

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(Against the Marion County Board of Education)

183. Plaintiff hereby incorporates by reference paragraphs 1 through 182 as if stated verbatim herein.

(Against the Marion County Board of Education)

184. Title VII makes it unlawful for an employer to discriminate against an individual with respect to the compensation, terms, conditions, or privileges of employment because of such individual's sex. 42 U.S.C. § 2000e-2(a).

[The filing's paragraphs 68 through 182 are not transcribed.]

51. Plaintiff hereby incorporates by reference paragraphs 1 through 182 as if stated verbatim herein.

52. Title VII makes it unlawful for an employer to discriminate against an individual with respect to the compensation, terms, conditions, or privileges of employment because of such individual's sex. 42 U.S.C. § 2000e-2(a).

185. The Board, acting through the Individual Defendants, penalized Dr. Heston for a close professional association with a female colleague that the same Board members tolerated, without comment, between male administrators.

53. The Board, acting through the Individual Defendants, penalized Dr. Heston for a close professional association with a female colleague that the same Board members tolerated, without comment, between male administrators.

186. A man in Dr. Heston's position, perceived to maintain the identical association with Ms. DeVaul, would not have been interrogated, surveilled, or restricted, as Defendant Costello's own recorded words — "Well, that's not my business" — confirm.

54. A man in Dr. Heston's position, perceived to maintain the identical association with Ms. DeVaul, would not have been interrogated, surveilled, or restricted, as Defendant Costello's own recorded words — "Well, that's not my business" — confirm.

187. Sex is accordingly the but-for variable in the treatment Dr. Heston received.

188. Applying the words of the statute as written, an employer who intentionally penalizes a woman for conduct or associations it tolerates in a man discriminates against her because of sex. *Bostock v. Clayton County*, 590 U.S. 644 (2020).

55. Sex is accordingly the but-for variable in the treatment Dr. Heston received.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, Dr. Donna Heston, respectfully requests that this Honorable Court enter judgment in her favor and against Defendants and grant the following relief:

189. The Fourth Circuit applies the same textual rule where, as here, the employer acts on its perception of an employee's sexual orientation. *Roberts v. Glenn Indus. Grp., Inc.*, 998 F.3d 111, 120–21 (4th Cir. 2021).

(a) A declaratory judgment that Defendants' conduct violated Title VII, the Fourteenth Amendment as enforced through 42 U.S.C. § 1983, and the West Virginia Human Rights Act;

190. The Board, acting through the Individual Defendants, intentionally discriminated against Dr. Heston because of her sex, including their perception that she is in a same-sex relationship.

(b) Permanent injunctive relief enjoining Defendants from further discrimination and retaliation, requiring the removal of the discriminatory restrictions and conditions

e. Punitive damages against Defendants Costello, Rogers, and Saunders in their individual capacities under 42 U.S.C. § 1983 and the West Virginia Human Rights Act;

f. Pre-judgment and post-judgment interest as allowed by law;

g. Reasonable attorney's fees, expert fees, and costs pursuant to 42 U.S.C. §§ 1988 and 2000e-5(k) and W. Va. Code § 5-11-13; and

h. Such other and further relief as this Honorable Court deems just and proper.

THE PLAINTIFF HEREBY DEMANDS A TRIAL BY JURY.

Dr. Donna Heston,
By Counsel,

/s/ Ryan J. Umina, Esq.
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imposed on Plaintiff's employment, and requiring the Board to adopt and enforce appropriate anti-discrimination and anti-retaliation measures;

(c) All equitable make-whole relief, including back pay, lost and reduced compensation, the restoration of employment terms commensurate with those Plaintiff would have received absent discrimination, and front pay as appropriate;

(d) Compensatory damages in an amount to be determined at trial, without statutory cap under 42 U.S.C. § 1983 and the West Virginia Human Rights Act, and subject to the applicable statutory limits under Title VII;

(e) Punitive damages against Defendants Costello, Rogers, and Saunders in their individual capacities under 42 U.S.C. § 1983 and the West Virginia Human Rights Act;

(f) Pre-judgment and post-judgment interest as allowed by law;

(g) Reasonable attorney's fees, expert fees, and costs pursuant to 42 U.S.C. §§ 1988 and 2000e-5(k) and W. Va. Code § 5-11-13; and

(h) Such other and further relief as this Honorable Court deems just and proper.

DEMAND FOR JURY TRIAL

THE PLAINTIFF HEREBY DEMANDS A TRIAL BY JURY.

Dated: July 31, 2026

Dr. Donna Heston,

By Counsel,

s/ Ryan J. Umina

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